

Alok Mohile v. State of U.P.

Allahabad High Court · Division Bench · 10 February 2010 · Writ-C No. 4525 of 2010 · **Writ disposed; consider connection application on completing formalities.**

HEADNOTE

Tenant's new-connection application was refused on the landlady's objection. Without deciding whether Supply Code paragraph 4.4 read with Annexure 4.2 permits connection without owner consent, the Court disposed of the writ directing the licensee to consider the application subject to the petitioner completing all necessary requirements, including the indemnity bond the licensee said was wanting.

FACTUAL SUMMARY

Alok Mohile, tenant of a shop at House No. 111/407, Ashok Nagar, Kanpur Nagar, applied on 27 June 2009 for an electricity connection. On 11 July 2009 the Assistant Engineer refused it citing the landlady's objection. He sought a mandamus, relying on paragraph 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005. The licensee's counsel stated that no indemnity bond under paragraph 4.2 had been submitted and that the application would be processed once that and other formalities were completed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant connection; owner objection; indemnity bond

HOLDING

Where a tenant's application for a new electricity connection was stalled on the landlady's objection, and the licensee stated that the application would be processed on submission of an indemnity bond and other formalities, the Court disposed of the writ directing the respondents to consider the case for grant of connection subject to fulfillment of all necessary requirements. It did not hold that connection must be granted, and did not construe paragraph 4.4 read with Annexure 4.2. ¶ 1

FLAG Licensee's counsel cited 'Paragraph 4.2' of the Supply Code for the indemnity bond; the petitioner relied on paragraph 4.4 read with Annexure 4.2. The Court did not resolve the clause number.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARAGRAPH 4.4 READ WITH ANNEXURE 4.2 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 PERMITS A TENANT'S ELECTRICITY CONNECTION WITHOUT THE LANDLADY'S CONSENT OR DESPITE HER OBJECTION

Petitioner so contended; the Court disposed of the writ on the licensee's stand that the application would be processed on indemnity bond and other formalities, without construing clause 4.4. ¶ 1